take them are matters for careful determination when the question arises. Unless this House has the authority to deal with it, the situation cannot be faced and we would be simply helpless to prevent a steady deterioration and disintegration of the situation.

Then the other things are public order and incitement to an offence. Again these are words which may mean more or less – it is perfectly true. If such words were used in an actual piece of legislation, they have to be examined strictly as to how far they go and what powers they confer on the executive. But when you use them here in the sense of enabling Parliament to take steps, then you should use some general phrase not limiting the power of Parliament to face a situation. But when it brings any legislation to that effect, then examine it thoroughly and carefully. It is clear that the original clause, as interpreted by superior courts in this country, has put this Government, or would put any Government, into a very difficult position. The House knows – and it is mentioned in the Statement of Object and Reasons – that one of the High Courts held that even murder or like offences can be preached. Now it is an extraordinary state of affairs if that can be done. It may be and I am quite sure it would be in the long run, as in other countries, that judicial interpretation would gradually bring things more in line with which I would beg to say is the spirit of the Constitution.

Prof. Ranga (Madras): Was it an Indian Judge who said that even murder could be preached?

Shri Jawaharlal Nehru: I do not remember his nationality; I cannot say.

An Hon. Member: It was a Punjab Judge.

Shri Jawaharlal Nehru: But I do not think we should go into that question.

Pandit Krishna Chandra Sharma (Uttar Pradesh): That position has been rejected by the Supreme Court.

Shri Jawaharlal Nehru: I have no doubt that in course of time with the help of the highest courts in the land we would develop conventions eventually which would widen the authority of the Legislature to deal with them as the United States of America has done. The unfortunate part is that